

Open a driving school

A Driving School License is required of any person, firm, association or corporation engaged in the business of giving instruction in the operation of motor vehicles or motorcycles for hire. The process of opening a driving school involves several steps. These steps are also outlined in the form Opening a Driving School [1] (MV-299.2).

To open a driving school, you will need

- to meet DMV s requirements below for your place of business
 - a qualified, experienced instructor (see below)
- to meet DMV s requirements for records (receipts, etc.) and record-keeping
- authority to operate a business in New York State and this location

Requirements

- You must receive approval from DMV for the use of the name for your driving school (see also Request for Approval of Driving School Name [2]) before you submit an application.
 - Your place of business must
 - - be at least 50 square feet, which is accessible by your customers
 - - be in a suitable building (see Part 76.2 for details)
 - - be at least 1,500 feet from a DMV office or road test area
 - - have required signs posted:
 - - Applicant must be given a receipt for all payments
 - - hours of operation
 - - schedule of fees

NOTE: If your school will teach the Pre-licensing course, you must also have a classroom that meets DMV s requirements (see also Request for Premises Check [3]).

- you must have an experienced instructor who holds a valid instructor s card, and has at least 1,000 hours of experience as a behind-the-wheel instructor.
- you must keep appropriate records.
- you must have a vehicle(s) used for training and testing students that meets DMV s requirements (see also List of Driving School Vehicles) [4]. All vehicles (except motorcycles) must have Student Driver signs and be equipped with dual-control brakes and mirrors for the instructors use.

How to apply

After you receive approval of your business name from DMV, you must submit the following items to DMV

- your Request for Approval of Driving School Name \[2\] form (MV-299.3) that shows your Driving School name was approved by the DMV (see "Driving School Name Approval" above)
- a completed Driving School License Application \[5\] form (MV-521). You must list at least one Driving School Instructor who holds a valid Driving School Instructor Certificate (MV-524) and has a minimum of 1,000 hours of behind-the-wheel instruction experience
- the application fee of \[50.00\] (non-refundable). Make your check or money order payable to "Commissioner of Motor Vehicles". We cannot accept cash or credit cards
- a completed Personal History \[6\] form (MV-521.1) for each owner, partner, corporate officer, agent, employee and major stockholder (20% or more of stock) listed on your Driving School Application (MV-521)
- if you have employees, you must submit proof of current Workers Compensation and Disability Benefits Insurance Coverage. See the instructions on the Driving School License Application \[5\] (MV-521) for more information
- if you do not have employees, you must submit a completed (CE-200) available from the NY State Worker's Compensation Board. This form is to show a government agency that NY State Workers Compensation and Disability Benefits insurance are not required
- a (X-201), a (X-74) or (DOS-1025). See Opening a Driving School \[1\] (MV-299.2) for more details
- a copy of the lease for your proposed place of business
- a Certificate of Occupancy for your proposed place of business
- a copy of the receipt provided to clients as required by Section 76.8 of the Commissioner's Regulations \[7\]. See also Receipts and Contracts \[8\] (MV-299.4)
- a copy of the Student Record Card as required by Section 76.8 of the Commissioner's Regulations \[7\]
- a schedule of fees for all services your driving school will provide
- a list of all vehicles to be used in training and testing. See also List of Driving School Vehicles \[4\] (MV-527)
- an Application for Driving School Instructor Certificate \[9\] (MV-523) for each instructor

Send all required items to:

New York State Department of Motor Vehicles Bureau of Driver Training Programs
6 Empire State Plaza, Room 327 Albany, NY 12228 (518) 473-7174

After application is submitted

After your application is reviewed by DMV in Albany, it is sent to your local Motor Vehicle office. Your local Motor Vehicle office will schedule an inspection. When the inspector visits your location, be prepared to show

- the original lease
 - the original business certificate and/or corporate papers and/or filing receipt
 - a sample customer receipt and student record card
 - signs and advertising (see Commissioner Regulations Part 76.21 \[7\])
 - a permanent, bound book or record-keeping system
 - a filing cabinet

If your school intends to offer the Pre-Licensing Course, you will also need to have the classroom inspected. The classroom requirements are listed on the Request for Premise Check [3] form (MV-279), and include

- the classroom must be at least 150 square feet, and free from audible and visual distractions
 - If the classroom facilities are combined with office space, the combined total must be at least 200 square feet
 - the classroom must be clean, comfortable, and easily accessible to students with disabilities
 - adequate seating for each student
 - adequate heating, ventilation, and lighting
 - rest room facilities easily accessible to all students
 - appropriate chalkboard, flipcharts, and audio/visual equipment

After approval

After your business location is inspected and approved, we will notify you that you need to pay the driving school license fee of \$50. Your new license will be valid for one year.

Once we receive the driving school license fee, we will mail your Driving School License (which must be posted in plain sight in your place of business) and a Driving School Instructor Certificate for each of your instructors.

If you have any questions about these requirements or documentation, please call Driver Training Programs at 1-518-473-7174.